

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Guwahati **PS:** ACB Guwahati
Year: 2024 **Date:** 21/10/2024
FIR No: RC0172024E0010

2. **Acts & Sections:**

Acts	Sections	R/W Section
IPC	406	
IPC	420	
BANNING OF UNREGULATED DEPOSIT SCHEMES ACT, 2019	21(1)	
BANNING OF UNREGULATED DEPOSIT SCHEMES ACT, 2019	21(2)	
BANNING OF UNREGULATED DEPOSIT SCHEMES ACT, 2019	21(3)	

3. **Suspected offences:**

(a) **Occurrence of offence:**

Day:

From Date:

Time Period:

To Date:

(b) **Information Received at PS:**

Date:

CBI, ACB, Guwahati

11/10/2024

(c) **General Diary Reference:**

Entry No.:

Date:

16

21/10/2024

Time:

17:05:29

4. **Type of Information:** Written

5. **Place of Occurrence:**

Daipam, PS- Dalgaon, Distt- Darrang

(a) **Direction & distance from PS:**

About 100 KMs towards North East

Beat No.:

(b) **Address:**

Plot No.:

City:

State:

Area:

Pin:

District:

(c) **In case, outside the limit of this Police Station, then**

Name of PS:

District:

6. **Complainant / Informant:**

Complainant 1

(a) **Name:** Mr. Tonmoy Nath Address Khutikatia Nagaon

(b) **Father's/Husband's Name:**

(c) **Date/Year of Birth:** 02/02/1986

(d) **Nationality:** INDIAN

(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
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(f) **Occupation:** Inspector of Police, Dalgaon PS

(g) **Address:**

Plot No	Area	City	State	District	Pin
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7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1

Name: Mr. Md Amir Hamza(1), **Father/Husband name:** Lt Majam Ali Miya

Address:

Daipam, Dalgaon, Darrang, Assam

8. **Reasons for delay in reporting by the complainant/informant:**

No Delay

9. Particulars of properties stolen:

Item Name	Age of Property	Estimated Value (in INR)
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10. Total value of property stolen:

11. Inquest Report/U.D. Case No., if any: NA

12. First information contents:

In pursuance of the notification No. eCF-552422/105 dated 09.10.2024 issued by Govt. of Assam u/s 6 of the DSPE Act, 1946 and subsequent notification No. F. No. 228/84/2024-AVD-II dated 11.10.2024 issued by the DoPT (GOI) u/s 5 of DSPE Act, 1946 investigation of FIR No. 182/2024 dated 03.09.2024 registered by P.S.- Dalgaoon, District-Darrang, Assam has been transferred to CBI.

The complaint based on which FIR was registered is reproduced below-

"To,

The Officer-in-charge

Dalgaoon Police Station

Sub- F.I.R

Sir,

With reference to the subject cited above, I have the honour to report that it is to inform you that a Company by the name "Ujjal Mutual Benefit "Nidhi" Ltd., was incorporated in November, 2021 as a limited Company under the Companies Act, 2013 and since its inception, it has been operating in Darrang district. Information has been found that the Company is regularly collecting huge funds/deposits from public in violation of the provisions under Section 73 and 406 of the Companies Act, 2013. The Company is accepting deposits from public in violation of provisions of Sections 73 and 406 of the Companies Act, 2013 by offering an "unregulated Deposit scheme" as defined under Section 2(17) of the "Banning of Unregulated Deposit Schemes Act, 2019. Hence, it is a clear violation of the provision of Section 3 of the Banning of Unregulated Deposit Schemes Act, 2019.

I, therefore, request you to register a Case u/s 406/420 IPC read with Section 21(1)/21(2)/21(3) of the Banning of Unregulated Deposit Schemes Act, 2019 against below named promoter of the company.

Name and Add of accused-

Md. Amir Hanza.

S/o Lt. Majam Ali Miya

Vill-Daipam

PS-Dalgaoon

Dist- Darrang, Assam

Yours' faithfully

Sd/-

Tonmoy Nath

Inspector of Police

O/c Dalgaoon PS

Dated 03/09/2024"

Accordingly, FIR No. 182/2024 dated 03.09.2024 registered by PS-Dalgaoon, District- Darrang, Assam u/s 406/420 IPC r/w Section 21(1), 21 (2) and 21(3) of Banning of Unregulated Deposit Schemes Act, 2019 is registered in CBI and is entrusted to Shri Ravish Kumar Jha, Inspector of Police, CBI, ACB, Guwahati for investigation.

Certified copy of FIR No. 182/2024 dated 03.09.2024 registered by PS- Dalgaoon, District- Darrang, Assam and copies of notification u/s 6 and 5 of DSPE Act, 1946 issued by Govt. of Assam and DoPT respectively are part and parcel of this FIR.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO:

Ravish Kumar Jha

Rank:

INSPECTOR (ACB Guwahati)

No:

122751

to take the investigation
OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:
on point of jurisdiction.

District:

Attached documents:

Document name

Notification u/s 6 of DSPE Act, Govt of Assam, Notification u/s 5 of DSPE Act, DoPT, GOI, FIR No 182/2024 of Dalgaon PS

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of
the complainant/informant

Signature of Officer
in-charge Police Station

Name: Bishwa Bandhu Chakravarty

Rank: SUPDT. OF POLICE (ACB, Guwahati)

B.B. Chakravarty
Superintendent of Police
CBI, ACB, Guwahati

15. Date and time of dispatch to the Court:

New Delhi, dated, the 11th October, 2024

NOTIFICATION

S.O. — In exercise of the powers conferred by sub-section (1) of section 5 read with section 6 of the Delhi Special Police Establishment Act, 1946 (25 of 1946), the Central Government with the consent of the State Government of Assam, issued by the Governor vide Notification No. eCT-552472 105 -A Dated 07 October, 2024, Political (A) Department: Dispur, hereby extends the powers and jurisdiction of the members of the Delhi Special Police Establishment throughout the State of Assam for the investigation of offences under relevant sections of IPC BNS and other Acts as mentioned in the FIRs and any other law related to the 41 nos. of police cases as below, which are registered at various police stations in the state of Assam concerning unregulated deposits involving fraudulent transactions and trading of large sums of money.

S. N.	Case No., Section of Law and Police Station
1.	Paltan Bazar PS-FIR No. 0288/2024, Section 316(2), 318(4) BNS, and Section 21 of Banning of Unregulated Deposit Scheme Act, 2019
2.	Dibrugarh PS-FIR No. 1354/2024, Section 21, 23 of Banning of Unregulated Deposit Scheme Act, 2019, and Section 316(2), 318(2) of Bharatiya Nyaya Sanhita (BNS), 2023
3.	Dibrugarh PS-FIR No. 0352/2024, Section 21, 23 of Banning of Unregulated Deposit Scheme Act, 2019, and Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023
4.	Bhangagarh PS-FIR No. 130/2024, Section 126(3), 420, 406 IPC and Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019.
5.	Tezpur PS-FIR No. 0533/2024, Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3) of the Banning of Unregulated Deposit Scheme Act, 2019.
6.	Silchar PS FIR No.0789/2024, Section 21, 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019 and Section 406, 420 IPC 1860.
7.	Nagaon PS-FIR No.0859/2024, Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023 and Section 21(1), 21(2), 21(3), 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019.
8.	Azara PS-FIR No. 184/2024, Section 316(2), 318(4) BNS, 2023 R.W sec.21(1)(2)(3) 23 of The Banning of Unregulated Deposit schemes Act, 2019.
9.	Dergaon PS-FIR No.0140/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019 and Section 120-B, 420, 406 of IPC 1860.
10.	Geeta Nagar PS- FIR No.0174/2024, Section 316(2), 318(4), 316(5), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023 and Section 21(3), 23 of Banning of Unregulated Deposit Scheme Act, 2019.
11.	Borhulla PS-FIR No. 0028/2024, Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023 and Section 21, 23 of Banning of Unregulated Deposit Scheme Act, 2019.
12.	Bijni PS-FIR No. 0074/2024, Section 420-406-34 IPC and Section 21 of Banning of Unregulated Deposit Scheme Act, 2019.
13.	Mushalpur PS-FIR No. 0102/2024, Section 316(2), 318(2) of Bharatiya Nyaya Sanhita (BNS), 2023 and Section 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019.
14.	Hailakandi PS-FIR No. 0201/2024, Section 21(1), 22, 23 of Banning of

	Unregulated Deposit Scheme Act, 2019 and Section 406, 420, 34 IPC 1860.
15.	Tamarhat PS-FIR No.0055/2024, Section 120-B, 419, 406, 420 IPC 1860 and Section 4, 5 Prize Chit and Money Circulation Schemes Banning Act 1978 and Section 21(1,2,3), 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019
16.	Karimganj PS-FIR No.0534/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019 and Section 120-B, 420, 406, 409 IPC 1860.
17.	Sivasagar PS-FIR No.0113/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019 and Section 316(2), 318(1) of Bharatiya Nyaya Sanhita (BNS), 2023.
18.	Dalgaon PS-FIR No. 0184/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019 and Section 406, 420 IPC 1860.
19.	Dhubri PS-FIR No 0310/2024, Section 21(3), 23, 25 of Banning of Unregulated Deposit Scheme Act, 2019 and Section 120-B, 409, 420, 506 IPC 1860.
20.	CID Cyber PS-FIR No. 0012/2024, Section 111(2)(b), 318(4), 316(2), 316(5) of Bharatiya Nyaya Sanhita (BNS), 2023 and Section 66 of Information Technology Act, 2000, Section 21(1), 21(2), 21(3), 23 of The Banning of Unregulated Deposit Scheme Act, 2019.
21.	Dalgaon PS-FIR No.0182/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 420 IPC 1860.
22.	Rangapara PS-FIR No.0066/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023.
23.	Dalgaon PS-FIR No. 0185/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 420 IPC 1860.
24.	Lakhipur PS-FIR No.0224/2024, Section 61(2), 316(5), 318(3), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3), 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019.
25.	Missamari PS-FIR No.0090/2024, Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019.
26.	Pulibor PS-FIR No. 0092/2024, Section 21, 23, 24 of Banning of Unregulated Deposit Scheme Act, 2019 and Section 120-B, 420, 406, 409 IPC
27.	Tamarhat PS-FIR No.0068/2024, Section 120-B, 420, 406, 347, 307 IPC 1860 and Section 21(1,2,3), 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019
28.	Missamari PS-FIR No.0089/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023.
29.	Dalgaon PS-FIR No. 0186/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 420 IPC 1860.
30.	Chariduar PS -FIR No. 146/2024, Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3) of the Banning of Unregulated Deposit Scheme Act, 2019.
31.	Kajalgaon PS-FIR No. 0087/2024, Section 318(4), 316(2), 316(5), 316(5) of Bharatiya Nyaya Sanhita (BNS), 2023.
32.	Dalgaon PS-FIR No.0183/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 420 IPC 1860.
33.	Hojai PS-FIR No. 0260/2024, Section 318(4), 316(5) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(3), 22, 23, 26 of Banning of Unregulated Deposit Scheme Act, 2019.
34.	Gouripur PS-FIR No.0268/2024, Section 21(1), 21(2), 21(3), 23 of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 417, 420, 506 of IPC 1860.
35.	Golakganj PS-FIR No. 0201/2024, Section 21(1), 21(2), 21(3), 23 of

	Banning of Unregulated Deposit Scheme Act, 2019, and Section 1(3), 316(2), 318(4), 351(2) of Bharatiya Nyaya Sanhita (BNS), 2023.
36.	Golakganj PS-FIR No. 0203/2024, Section 21(1), 21(2), 21(3), 23 of Banning of Unregulated Deposit Scheme Act, 2019, and Section 1(3), 316(2), 318(4), 351(2) of Bharatiya Nyaya Sanhita (BNS), 2023.
37.	Karimganj PS-FIR No. 0543/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 120-B, 420, 406, 409 IPC 1860.
38.	Dispur PS-FIR No. 0934/2024, Section 21(1), 21(2), 21(3), 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019, 2. Section 406, 420 IPC 1860.
39.	Tezpur PS-FIR No. 527/2024, Section 316(2), 318(4), 3(5) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3) of the Banning of Unregulated Deposit Scheme Act, 2019.
40.	Rupahihat PS-FIR No. 0250/2024 Section 61(2)(a), 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21, 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019.
41.	Dispur PS -FIR No. 849/2024, U.S. 120B 420 468 471 IPC, R.W. Sec. 5 of Assam Protection of Interest of Depositors (In financial establishment) (Amendment) Act 2013, added sec. 21(1) 21(2) 21(3) 23 of Banning of Unregulated Deposit Scheme Act, 2019.

and any attempt, abetment and or conspiracy, in relation to or in connection with such offence(s) and/or for any other offence committed in the course of the same transaction or arising out of the same facts.

[F. No. 228/84/2024-AVD-II]

(Satyam Srivastava)

Under Secretary to the Government of India

To,

The Manager,
Govt. of India Press,
Mayapuri, Ring Road,
New Delhi-110064

F. No. 228/84/2024-AVD-II

New Delhi dated: 11.10.2024

Copy to:

- (i) The Chief Secretary, Government of Assam
- (ii) The Director, Central Bureau of Investigation (CBI), CGO Complex, New Delhi.
- (iii) Director of Prosecution, Central Bureau of Investigation (CBI), CGO complex, New Delhi.
- (iv) Notification & Statistics Maintenance Cell, Room No. 10, 9th Floor, DoP, CBI, CGO Complex, New Delhi-110003.
- (v) Guard File.

(Satyam Srivastava)

Under Secretary to the Government of India

GOVERNMENT OF ASSAM
POLITICAL (A) DEPARTMENT : DISPUR
2nd Floor, 1 Block, Assam Secretariat, Dispur, Guwahati-6
Telefax No. 0361-2261421 :: eMail : home.assam@gov.in

**ORDERS BY THE GOVERNOR
NOTIFICATION**

Dated Dispur, the 9th October, 2024

No. eCF-552422/105 :: In pursuance of the provision of Section 6 of the Delhi Special Police Establishment Act, 1946 (Act 25 of 1946), the Governor of Assam is pleased to accord consent to the extension of powers and jurisdiction of the members of the Delhi Special Police Establishment throughout the State of Assam for the investigation of offences under relevant sections of IPC, BNS and other Acts as mentioned in the FIRs and any other law related to the 41 nos. of police cases as below, which are registered at various police stations in the state of Assam concerning unregulated deposits involving fraudulent transactions and trading of large sums of money.

Sl No.	Case No, Section of Law & Police Station
1.	Paltan Bazar PS-FIR No. 0288/2024, Section 305, 316(5), 318(4) BNS, and Section 21 of Banning of Unregulated Deposit Scheme Act, 2019
2.	Dibrugarh PS-FIR No. 0354/2024, Section 21, 23 of Banning of Unregulated Deposit Scheme Act, 2019, and Section 316(2), 318(2) of Bharatiya Nyaya Sanhita (BNS), 2023
3.	Dibrugarh PS-FIR No. 0352/2024, Section 21, 23 of Banning of Unregulated Deposit Scheme Act, 2019, and Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023
4.	Bhangagathi PS-FIR No. 130/2024, Section 120(B), 420, 406 IPC, and Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019
5.	Tezpur PS-FIR No. 0533/2024, Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3) of the Banning of Unregulated Deposit Scheme Act, 2019
6.	Silchar PS-FIR No.0789/2024, Section 316(2), 318(4) of Banning of Unregulated Deposit Scheme Act, 2019 and Section 406, 420 IPC, 1860
7.	Nagaon PS-FIR No.0859/2024, Section 61(2), 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3), 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019.
8.	Azara PS-FIR No. 184/2024, U/S-61(2), 316(2), 318(4) BNS, 2023, R/W sec.21(1)(2)(3) 23 The Banning of Unregulated Deposit schemes, Act, 2019, Section 21(1)(2)(3) 23 The Banning of Unregulated Deposit schemes Act, 2020
9.	Dergaon PS-FIR No.0140/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019 and Section 120-B, 420, 406 of IPC, 1860.
10.	Geeta Nagar PS- FIR No.0174/2024, Section 61(2)(a), 111(3), 316(5), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023 and Section 21(1), 23 of Banning of Unregulated Deposit Scheme Act, 2019.
11.	Borhulla PS-FIR No. 0028/2024, Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023 and Section 21, 23 of Banning of Unregulated Deposit Scheme Act, 2019
12.	Bajn PS-FIR No. 0074/2024, Section 420, 406, 12 IPC, and Section 21 of Banning of Unregulated Deposit Scheme Act, 2019
13.	Mushalpur PS-FIR No. 0102/2024, Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023 and Section 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019.

14. Hailakandi PS-FIR No. 0201/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019 and Section 406, 420, 34 IPC 1860.
15. Tamarhat PS-FIR No.0075/2024, Section 120-B, 420, 406, 420 IPC 1860 and Section 4, 5 Prize Chit and Money Circulation schemes Banning Act 1078 and Section 21(1,2,3), 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019.
16. Karimganj PS-FIR No.0534/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019 and Section 120-B, 420, 406, 409 IPC 1860.
17. Sivasagar PS-FIR No.0113/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019 and Section 316(1), 316(2), 316(3) of Bharatiya Nyaya Sanhita (BNS), 2023.
18. Dalgao PS-FIR No. 0184/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019 and Section 406, 420 IPC 1860.
19. Dhubri PS-FIR No.0310/2024, Section 21(3), 23, 25 of Banning of Unregulated Deposit Scheme Act, 2019 and Section 120-B, 409, 420, 506 IPC 1860.
20. CID Cyber PS-FIR No. 0012/2024, Section 111(2)(b), 318(4), 316(2), 316(3) of Bharatiya Nyaya Sanhita (BNS), 2023 and Section 66 of Information Technology Act, 2000, 3 Section 21(1), 21(2), 21(3), 23 of The Banning of Unregulated Deposit Scheme Act, 2019.
21. Dalgao PS-FIR No.0182/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 420 IPC 1860.
22. Rangapara PS-FIR No.0066/2024 Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 316(2), 316(4) of Bharatiya Nyaya Sanhita (BNS), 2023.
23. Dalgao PS-FIR No. 0185/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 420 IPC 1860.
24. Lakhimpur PS-FIR No.0224/2024, Section 61(2), 316(1), 318(3), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3), 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019.
25. Missamari PS-FIR No.0090/2024, Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019.
26. Pulibor PS-FIR No. 0092/2024, Section 21, 23, 24 of Banning of Unregulated Deposit Scheme Act, 2019 and Section 120-B, 420, 406, 409 IPC.
27. Tamarhat PS-FIR No.0068/2024, Section 120-B, 420, 406, 347, 307 IPC 1860 and Section 21(1,2,3), 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019.
28. Missamari PS-FIR No.0089/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023.
29. Dalgao PS-FIR No. 0186/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 420 IPC 1860.
30. Chariduar PS -FIR No. 146/2024, Section 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3) of the Banning of Unregulated Deposit Scheme Act, 2019.
31. Kajalgaon PS-FIR No. 0087/2024, Section 318(4), 316(2), 316(3), 316(5) of Bharatiya Nyaya Sanhita (BNS), 2023.
32. Dalgao PS-FIR No.0183/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 420 IPC 1860.
33. Hojai PS-FIR No. 0260/2024, Section 318(4), 316(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(3), 22, 23, 26 of Banning of Unregulated Deposit Scheme Act, 2019.
34. Gouripur PS-FIR No.0268/2024, Section 21(1), 21(2), 21(3), 23 of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 417, 420, 506 of IPC 1860.

37.	Golakganj PS-FIR No. 0201/2024, Section 21(1), 21(2), 21(3), 23 of Banning of Unregulated Deposit Scheme Act, 2019, and Section 404, 316(2), 318(4), 351(2) of Bharatiya Nyaya Sanhita (BNS), 2023.
38.	Golakganj PS-FIR No. 0201/2024, Section 21(1), 21(2), 21(3), 23 of Banning of Unregulated Deposit Scheme Act, 2019, and Section 404, 316(2), 318(4), 351(2) of Bharatiya Nyaya Sanhita (BNS), 2023.
38.	Karimganj PS-FIR No. 9543/2024, Section 21(1), 21(2), 21(3) of Banning of Unregulated Deposit Scheme Act, 2019, and Section 120-B, 420, 406, 409 IPC 1860.
38.	Dispur PS-FIR No. 0934/2024, Section 21(1), 21(2), 21(3), 23 of Banning of Unregulated Deposit Scheme Act, 2019, and Section 406, 420 IPC 1860.
39.	Tezpur PS-FIR No. 527/2024, Section 316(2), 318(4), 3(5) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21(1), 21(2), 21(3) of the Banning of Unregulated Deposit Scheme Act, 2019.
40.	Rupahihat PS-FIR No. 0250/2024 Section 61(2)(a), 316(2), 318(4) of Bharatiya Nyaya Sanhita (BNS), 2023, and Section 21, 22, 23 of Banning of Unregulated Deposit Scheme Act, 2019.
41.	Dispur PS-FIR No. 849/2024, U.S. 120B 420-406 471 IPC, RW Sec. 5 of Assam Protection of Interest of Depositors (In financial establishment) (Amendment) Act 2013, added sec. 21(1) 21(2) 21(3) 23 of Banning of Unregulated Deposit Scheme Act, 2019.

BY ORDERS AND IN THE NAME OF GOVERNOR OF ASSAM

Signed by

Ajay Tewari

Date 09-10-2024 15:51:49

(Shri Ajay Tewari, IAS)

Additional Chief Secretary to the Government of Assam,
Home & Political Departments

Memo No. eCF-552422/105 -A

Dated Dispur, the 9th October, 2024

Copy forward for favour of kind information and necessary action to:-

1. The Secretary to the Govt. of India, Ministry of Personnel, Public Grievances and Pension, Department of Personnel & Training, North Block, New Delhi-110001.
2. The Secretary to the Govt. of India, Ministry of Home Affairs, North Block, New Delhi-110001.
3. The Director, Central Bureau of Investigation (CBI) Complex, Lodhi Road, New Delhi-110003.
4. The Joint Secretary to the Govt. of India, North East Division, Ministry of Home Affairs (NE Division), New Delhi-110001.
5. The Director General of Police, Assam, Ulubari, Guwahati-07.
6. The Addl. Director General of Police (CID), Assam, Ulubari, Guwahati-07.
7. The Addl. Director General of Police (SB), Assam, Kahilipara, Guwahati-19.
8. The Commissioner & Secretary to the Governor of Assam, Raj-Bhawan, Guwahati-01.
9. The Dy. Inspector General, Central Bureau of Investigation (CBI), Garachuk, Guwahati-15.
10. The Deputy Commissioners of concerned Districts.
11. The Superintendent of Police, of concerned Districts. They are requested to provide all assistance to the CBI in connection with the inquiry and investigation.

Copy for kind information to:-

12. The Secretary, Coordination to Chief Secretary, Assam, Dispur.
13. The PPS to the Hon'ble Chief Minister, Assam.
14. The PS to the Principal Secretary to the Hon'ble Chief Minister, Assam, Dispur.

Signed by By orders etc.

Tapash Gupta

Date: 09-10-2024 16:07:01

Deputy Secretary to the Government of Assam,
Home & Political Departments.

FIRST INFORMATION REPORT

(Under Section 173 B.N.S.S)

प्रथम सूचना रिपोर्ट
(धारा 173 बी एन एस एस के तहत)

1. District (ज़िला): DARRANG P.S. (थाना): DALGAON Year (वर्ष): 2024
FIR No. (प्र.सू.रि. सं.): 0182 Date and Time of FIR (प्र.सू.रि. की दिनांक और समय): 03/09/2024 12:23 hrs
2. S.No. (क्र.सं.) Acts (अधिनियम) Sections (धारा(एँ))
1 IPC 1860 406
2 IPC 1860 420
3. (a) Occurrence of offence (अपराध की घटना): **The Banning of Unregulated Deposit Schemes Act 2019 - 21(1) / 21(2) / 21(3)**
1. Day (दिन): Monday Date From (दिनांक से): 01/11/2021 Date To (दिनांक तक): 01/11/2021
Time Period (समय अवधि): Pahar 1 Time From (समय से): 00:00 hrs Time To (समय तक): 00:00 hrs
(b) Information received at P.S. (थाना जहाँ सूचना प्राप्त हुई): Date (दिनांक): 03/09/2024 Time (समय): 12:23 hrs
(c) General Diary Reference (रोजानामा संदर्भ): Entry No. (प्रविष्टि सं.): 011 Date & Time (दिनांक और समय): 03/09/2024 12:23 hrs
4. Type of Information (सूचना का प्रकार): Written
5. Place of Occurrence (घटनास्थल):
1. (a) Direction and distance from P.S. (थाना से दूरी और दिशा): NORTH-WEST, 12 Km(s) Beat No. (बीट सं.):
(b) Address (पता): Daipam
(c) In case, outside the limit of this Police Station, then (यदि थाना सीमा के बाहर है तो):
Name of P.S. (थाना का नाम): District (State) (ज़िला (राज्य)):
6. Complainant / Informant (शिकायतकर्ता/सूचनाकर्ता):
(a) Name (नाम): TONMOY NATH
(b) Father's/Husband's Name (पिता / पति का नाम):
(c) Date/Year of Birth (जन्म तिथि / वर्ष): 02/02/1986 (d) Nationality (राष्ट्रियता): INDIA
(e) UID No. (यूआईडी सं.):
(f) Passport No. (पासपोर्ट सं.): Date of Issue (जारी करने की तिथि):
Place of Issue (जारी करने का स्थान):
- (g) Id details (Ration Card, Voter ID Card, Passport, UID No., Driving License, PAN)
S.No. (क्र.सं.) Id Type (पहचान पत्र का प्रकार) Id Number (पहचान संख्या)
1
- (h) Address (पता):
S.No. (क्र.सं.) Address Type (पता का प्रकार) Address (पता)
1 Present Address KHUTIKATIA KALONGPAR, NAGAON, NAGAON, ASSAM, INDIA
2 Permanent Address KHUTIKATIA KALONGPAR, NAGAON, NAGAON, ASSAM, INDIA
- (i) Occupation (व्यवसाय):
(j) Phone number (दूरभाष सं.): Mobile (मोबाइल सं.): 91-8638284128
7. Details of known/suspected/unknown accused with full particulars (ज्ञात / संदिग्ध / अज्ञात अभियुक्त का पूरा विवरण सहित वर्णन):
Accused More Than (अज्ञात आरोपी एक से अधिक हों तो सहाय):

S.No. (क्र.सं.)	Name (नाम)	Alias (उपनाम)	Relative's Name (रिश्तेदार का नाम)	Present Address (वर्तमान पता)
1	Md. Amir Hamza		Father's Name : Lt. Majam Ali Miya	1 Daipam, DALGAON, DARRANG, ASSAM, INDIA

certified to be true copy.

Nath
Inspector
Officer in Charge
Dalgaon Police Station
Darrang, Assam

8. Reasons for delay in reporting by the complainant/informant (शिकायतकर्ता / सूचनाकर्ता द्वारा रिपोर्ट देरी से दर्ज कराने के कारण):

9. Particulars of properties of interest (संबन्धित सम्पत्ति का विवरण):

S.No. (क्र.सं.)	Property Category (संपत्ति श्रेणी)	Property Type (सम्पत्ति का प्रकार)	Description (विवरण)	Value (in Rs/-) (मूल्य (रु में))
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10. Total value of property (in Rs/-)-सम्पत्ति का कुल मूल्य(रु में):

11. Inquest Report / U.D. case No., if any (मृत्यु समीक्षा रिपोर्ट / यू.डी.प्रकरण सं., यदि कोई हो):

S.No. (क्र.सं.)	UIDB Number (यू.डी.प्रकरण सं.)
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12. First Information contents (प्रथम सूचना तथ्य):

On 03/09/2024 complt. Insp. Tonmoy Nath of O/C Dalgaoon PS lodged an FIR stating that a company by the name Ujjal Mutual Benefit Nidhi Ltd. was incorporated in November, 2021 as a limited company under the Companies act, 2013 and since its inception, it has been operating in Darrang district. Information has been found that the company is regularly collecting huge funds/deposits from public in violation of the provisions under section 73 and 406 of the Companies Act, 2013. The company is accepting deposits from public in violation of provisions of sections 73 and 406 of the Companies Act, 2013 by offering an unregulated Deposit scheme as defined under section 2(17) of the Banning of Unregulated Deposit Schemes Act, 2019. Hence, the accused person cum owner namely Amir Hamja of the said company is committing the offence U/S 406/2420 IPC and 21(1)/21(2)/21(3) of The Banning of Unregulated Deposit Schemes Act, 2019. Hence the case.

13. Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No. 2.

(की गयी कार्यवाही: चूंकि उपरोक्त जानकारी से पता चलता है कि अपराध करने का तरीका मद. स. 2 में उल्लेख द्वारा के तहत है।)

(1) Registered the case and took up the investigation:
(प्रकरण दर्ज किया गया और जांच के लिए लिया गया):

or (या)

(2) Directed (Name of I.O.) (जांच अधिकारी का नाम): Mahadev Hira Rank (पद): SI (Sub-Inspector)
No.(सं.): NA to take up the investigation (को जांच अपने पास में लेने के लिए निर्देश दिया गया) or (या)

(3) Refused investigation due to (जांच के लिए):

or (के कारण इन्कार किया या)

(4) Transferred to P.S.(थाना): District (जिला):

on point of jurisdiction (को क्षेत्राधिकार के कारण हस्तांतरित) .

F.I.R. read over to the complainant / informant, admitted to be correctly recorded and a copy given to the complainant / informant free of cost. (शिकायतकर्ता / सूचनाकर्ता को प्राथमिकी पढ़ कर सुनाई गयी, सही दर्ज हुई माना और एक कॉपी निशुल्क शिकायतकर्ता को दी गयी।)

R.O.A.C.(आर.ओ.ए.सी.)

14. Signature/Thumb Impression of the complainant / informant.(शिकायतकर्ता / सूचनाकर्ता के हस्ताक्षर / अंगूठे का निशान):

15. Date and time of dispatch to the court (अदालत में प्रेषण की दिनांक और समय):

Signature of Officer in charge, Police Station
(थाना प्रभारी के हस्ताक्षर)

Name (नाम): TONMOY NATH

Rank(पद): I (Inspector)

No.(सं.): na

Attachment to item 7 of First Information Report (प्रथम सूचना रिपोर्ट के मद 7 सन्दर्भक):

Physical features, deformities and other details of the suspect/accused: (If known / seen)

(संदिग्ध / अभियुक्त की शारीरिक विशेषताएँ, विकृतियाँ और अन्य विवरण : (यदि ज्ञात / देखा गया))

S.No.(क्र.सं.)	Sex (लिंग)	Date/Year of Birth (जन्म तिथि / वर्ष)	Build (बनावट)	Height(cms.) (कद (से.मी.))	Complexion (रंग)	Identification Mark(s) (पहचान चिन्ह)
1	2	3	4	5	6	7
1	Male					Poxpitted: NO
Deformities/ Peculiarities (विकृतियाँ/ विशिष्टताएँ)	Teeth (दाँत)	Hair (बाल)	Eyes (आँखें)	Habit(s) (आदतें)	Dress Habit(s) (पहनावा)	
8	9	10	11	12	13	
Language /Dialect (भाषा/बोली)	Burn Mark (जले हुए का निशान)	Leucoderma (लुकोदेर्मा(सफेद धब्बे))	Mole (मस्सा)	Scar (घाव)	Tattoo (गूदे हुए का)	Others (अन्य)
14	15	16	17	18	19	20

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.
(यह क्षेत्र तभी दर्ज किए जाएंगे यदि शिकायतकर्ता / सूचनाकर्ता संदिग्ध / अभियुक्त के बारे में कोई एक या उससे अधिक जानकारी देता है।)

To,

The Officer-in-charge

Dalgaon Police Station

Sub- F.I.R

Sir,

With reference to the subject cited above, I have the honour to report that it is to inform you that a company by the name "Ujjal Mutual Benefit "Nidhi" Ltd. was incorporated in November, 2021 as a limited company under the Companies act, 2013 and since its inception, it has been operating in Darrang district. Information has been found that the company is regularly collecting huge funds/deposits from public in violation of the provisions under section 73 and 406 of the Companies Act, 2013. The company is accepting deposits from public in violation of provisions of sections 73 and 406 of the Companies Act, 2013 by offering an "unregulated Deposit scheme" as defined under section 2(17) of the "Banning of Unregulated Deposit Schemes Act, 2019. Hence, it is a clear violation of the provision of section 3 of the Banning of Unregulated Deposit Schemes Act, 2019.

I, therefore, request you to register a case u/s 406/420 IPC read with section 21(1)/21(2)/21(3) of the Banning of Unregulated Deposit Schemes Act, 2019 against below named promoter of the company.

Name and Add of accused-

Md. Amir Hamza

S/o L.L. Majam Ali Miya

Vill- Daipam

PS- Dalgaon

Dist- Darrang

Yours' faithfully

Certified to be true copy.

Wahin

Inspector
Officer-in-charge
Dalgaon Police Station
Darrang, Assam

Jannoy Nath

Ins. of Police

Dalgaon Police Station

12/03/2024